

Warsaw, August 18, 2022

Decision

DKE.561.23.2021

Pursuant to Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735, as amended) in connection with Article 7 § 1 and 2, Article 60, Article 101, Article 101a § 2, and Article 103 of the Act of May 10, 2018, on the Protection of Personal Data (Journal of Laws of 2019, item 1781) and based on Article 58 § 2 lit. i), Article 83 § 1 and 2, Article 83 § 4 lit. a) in connection with Article 31 and Article 83 § 5 lit. e) in connection with Article 58 § 1 lit. a) and e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35), after conducting an ex officio administrative proceeding regarding the imposition of an administrative monetary penalty on Mr. G. J., conducting business under the name F., based in P. at ul. (...), the President of the Personal Data Protection Office, stating that Mr. G. J., conducting business under the name F., based in P. at ul. (...), violated the provisions of Article 31 and Article 58 § 1 lit. a) and e) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation), consisting of a lack of cooperation with the President of the Personal Data Protection Office in the performance of his duties and failing to provide the President of the Personal Data Protection Office access to information necessary for the performance of his tasks, imposes on him an administrative monetary penalty in the amount of 4,569 PLN (in words: four thousand five hundred sixty-nine zlotys).

Justification

Factual Background

A complaint was submitted to the Personal Data Protection Office by Mr. D. S., residing in W. at ul. (...), regarding irregularities in the processing of his personal data by Mr. G. J., conducting business under the name F., based in P. at ul. (...) (hereinafter referred to as the "Entrepreneur"), consisting of processing this personal data without a legal basis. The complainant requested the President of the Personal Data Protection Office (hereinafter referred to as the "President of UODO") to order the Entrepreneur to delete his personal data and to impose an administrative monetary penalty due to the violation of the provisions of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of 04.05.2016, p. 1, with amendments published in OJ EU L 127 of 23.05.2018, p. 2, and in OJ EU L 74 of 04.03.2021, p. 35) (hereinafter referred to as the "Regulation 2016/679").

In order to examine Mr. D. S.'s complaint, the President of UODO initiated administrative proceedings under reference number DS.523.5697.2020, within which – based on Article 58 § 1 lit. a) and e) of Regulation 2016/679 – he summoned the Entrepreneur by letter dated February 24, 2021, to respond to the content of the complaint, to provide explanations regarding the matter, in particular to answer three detailed questions on issues significant for the case, and also to present evidence confirming the submitted explanations. This summons – directed to the address disclosed in the Central Register and Information on Economic Activity (hereinafter referred to as "CEIDG") as the permanent place of business of the Entrepreneur, which is also his address for service (P., ul. (...)) – was received on March 1, 2021, by Ms. A. J. – the representative of the Entrepreneur (according to the annotation on the delivery confirmation). The Entrepreneur did not provide any response to this letter.

Due to the lack of response to the summons of February 24, 2021, the President of UODO again – by

letter dated May 21, 2021 – addressed the Entrepreneur with a summons whose content was essentially identical to that of the summons of February 24, 2021. This summons – also directed to the address of the Entrepreneur disclosed in CEIDG – was received on May 25, 2021, by Ms. A. J., who was identified on the delivery confirmation as an "adult household member" of the addressee. This summons from the President of UODO also remained unanswered by the Entrepreneur.

In the letter from the President of UODO dated May 21, 2021, it was stated that failure to respond to the summons may result, due to the lack of cooperation with the President of UODO in the performance of his duties and the failure to provide access to personal data and information necessary for the President of UODO to perform his tasks, in the imposition on the Entrepreneur – in accordance with Article 83 § 4 lit. a) or Article 83 § 5 lit. e) of Regulation 2016/679 – of an administrative monetary penalty.

monetary penalty of up to 20,000,000 EUR, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

Mr. G. J. – according to the entry in the CEIDG – is an entrepreneur conducting business under the name F. in the field of maintenance and repair of motor vehicles as well as retail sale of parts and accessories for motor vehicles. His business has been conducted since July 1, 2016, and as of the date of issuance of this decision, it has an "active" status in the CEIDG. The business is conducted at the address: P., ul. (...). This address is also the one declared by the Entrepreneur and, as such, disclosed in the CEIDG, as the address for the delivery of correspondence.

The above circumstances of the factual state were established by the President of the UODO, among others, based on the entirety of the official correspondence that the President of the UODO conducted with the Entrepreneur, which correspondence is collected in the case files under the reference number DS.523.5697.2020. This correspondence, in which there is no response from the Entrepreneur to the calls of the President of the UODO, documents the entirety of attempts made by the President of the UODO to gain access to information necessary to fulfill his tasks, that is, in this case – to consider the matter under the reference number DS.523.5697.2020, and on the other hand reflects the lack of response from the Entrepreneur to the requests of the President of the UODO.

Proceedings

Due to the failure of the Entrepreneur to provide information necessary to resolve the matter under the reference number DS.523.5697.2020, the President of the UODO initiated ex officio – based on Article 83(5)(e) of Regulation 2016/679 – this administrative proceeding (under the reference number DKE.561.23.2021) regarding the imposition of an administrative monetary penalty in connection with the violation of Article 31 and Article 58(1)(a) and (e) of Regulation 2016/679. The Entrepreneur was informed of the initiation of the proceedings by a letter dated September 2, 2021, delivered to the Entrepreneur on September 6, 2021. The letter was received by Ms. A. J. – the representative of the Entrepreneur (according to the annotation placed on the receipt confirmation of the shipment). In this letter, the Entrepreneur was also summoned – in order to establish the basis for the calculation of the penalty, based on Article 101a(1) of the Act of May 10, 2018 on the Protection of Personal Data (Journal of Laws of 2019, item 1781), hereinafter referred to as "u.o.d.o." – to present a financial statement or another document showing the amount of turnover and the financial result achieved by the Entrepreneur in 2020. The above letter remained unanswered by the Entrepreneur.

By another letter – dated April 8, 2022 – the Entrepreneur was summoned – in order to update the information necessary to determine the amount of the administrative monetary penalty – to present a financial statement or another document showing the amount of turnover and the financial result achieved by the Entrepreneur in 2021. The Entrepreneur was informed of the still existing possibility to provide explanations, which the President of the UODO had requested from him in the proceedings under the reference number DS.523.5697.2020, which could have a mitigating effect on the amount of the administrative monetary penalty imposed in this case. Furthermore, the Entrepreneur was informed of the possibility to express his views – before the issuance of the administrative decision – regarding the collected evidence and materials as well as the submitted requests. This summons was

delivered to the Entrepreneur on April 12, 2022. The letter was received by Ms. A. J. – an "adult household member" of the Entrepreneur according to the annotation placed on the receipt confirmation of the shipment. The Entrepreneur also did not respond to this summons from the President of the UODO.

After considering all the evidence collected in the case, the President of the Personal Data Protection Office weighed the following.

Legal Provisions

According to Article 57(1)(a) of Regulation 2016/679, the President of the UODO – as the supervisory authority within the meaning of Article 51 of Regulation 2016/679 – monitors and enforces the application of this regulation within its territory. As part of its competencies, the President of the UODO considers, among other things, complaints lodged by data subjects, conducts proceedings regarding these complaints to the appropriate extent, and informs the complainant of the progress and results of these proceedings within a reasonable time (Article 57(1)(f)). To enable the realization of such defined tasks, the President of the UODO has a number of powers specified in Article 58(1) of Regulation 2016/679 regarding the proceedings conducted, including the power to order the controller and the processor to provide any information necessary for the realization of its tasks (Article 58(1)(a)) and the power to obtain from the controller and the processor access to all personal data and information necessary for the realization of its tasks (Article 58(1)(e)).

A violation of the provisions of Regulation 2016/679, consisting of the failure of the controller or the processor to provide access to the data and information referred to above, resulting in a violation of the rights of the authority specified in Article 58(1), is subject to – according to Article 83(5)(e) in fine of Regulation 2016/679 – an administrative...

monetary penalty of up to 20,000,000 EUR, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying.

Additionally, both the controller and the processor are obliged, at the request of the supervisory authority, to cooperate with it in the performance of its tasks, as stated in Article 31 of Regulation 2016/679. Failure to comply with this obligation is subject to an administrative monetary penalty of up to 10,000,000 EUR, and in the case of an enterprise – up to 4% of its total annual worldwide turnover from the previous financial year, with the higher amount applying, in accordance with Article 83(4)(a) of Regulation 2016/679.

According to Article 83(3) of Regulation 2016/679, in the event of a violation by the controller or processor of several provisions of this regulation within the same or related processing operations, the total amount of the administrative monetary penalty may not exceed the amount of the penalty for the most serious infringement.

When assessing whether, and if so, to what extent an administrative monetary penalty should be imposed, the supervisory authority is obliged to take into account the following circumstances (factors for determining the penalty) specified in Article 83(2) of Regulation 2016/679:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing in question, the number of data subjects affected, and the level of damage suffered by them,
- b) the intentional or negligent character of the infringement,
- c) actions taken by the controller or processor to mitigate the damage suffered by data subjects,
- d) the degree of responsibility of the controller or processor, taking into account the technical and organizational measures implemented by them pursuant to Articles 25 and 32,
- e) any relevant previous infringements by the controller or processor,
- f) the degree of cooperation with the supervisory authority to remedy the infringement and mitigate its possible negative effects,
- g) categories of personal data affected by the infringement,
- h) the manner in which the supervisory authority became aware of the infringement, in particular, whether and to what extent the controller or processor reported the infringement,

- i) if measures referred to in Article 58(2) have previously been applied to the controller or processor in the same matter – compliance with those measures,
- j) the application of approved codes of conduct pursuant to Article 40 or approved certification mechanisms pursuant to Article 42,
- k) any other aggravating or mitigating factors applicable to the circumstances of the case, such as financial benefits directly or indirectly obtained as a result of the infringement or avoided losses.

Furthermore, the supervisory authority – in accordance with Article 83(1) of Regulation 2016/679 – ensures that the administrative monetary penalties imposed are effective, proportionate, and dissuasive in each individual case (principles of penalty determination).

For the purpose of establishing the basis for the administrative monetary penalty, the entity subject to the proceedings for the imposition of an administrative monetary penalty is obliged, at the request of the President of the Personal Data Protection Office (UODO), to provide, within 30 days from the date of receiving the request, the data necessary to determine this basis (Article 101a(1) of the Personal Data Protection Act). In the event of failure to provide this data by the entity subject to the penalty, the President of the UODO establishes the basis for the administrative monetary penalty in an estimated manner, taking into account the size of the entity, the specificity of its activities, or generally available financial data concerning the entity (Article 101a(2) of the Personal Data Protection Act).

According to the provisions of Article 103 of the Personal Data Protection Act, the equivalent amounts expressed in euros referred to in Article 83 of Regulation 2016/679 are calculated in zlotys according to the average euro exchange rate announced by the National Bank of Poland in the exchange rate table on January 28 of each year, and if the National Bank of Poland does not announce the average euro exchange rate on January 28 of a given year – according to the average euro exchange rate announced in the nearest exchange rate table of the National Bank of Poland after that date.

Legal Assessment

Referring the above-mentioned provisions of Regulation 2016/679 to the established factual state in this case, it should first be considered whether the Entrepreneur is the addressee of the obligations referred to in Article 58(1)(e) and Article 31 of Regulation 2016/679, the violation of which is subject to an administrative monetary penalty under Article 83(4) and (5) of Regulation 2016/679. Both of the aforementioned provisions of Regulation 2016/679 impose procedural obligations – within the proceedings conducted by the President of the UODO – on controllers and processors. The assessment of whether the Entrepreneur acts as a controller or as a processor of the personal data of the Complainant in the data processing that is the subject of Mr. D. S.'s complaint is an element of the factual state that is to be established in the proceedings with the reference number.

DS.523.5697.2020. In order to establish this, among other circumstances, the President of the UODO directed a request to the Entrepreneur – within the framework of this proceeding – to provide explanations. Due to the lack of explanations from the Entrepreneur, establishing this circumstance is hindered. However, for the purposes of this proceeding, it is sufficient to establish, as done in the proceeding with reference number DS.523.5697.2020, that the Entrepreneur processed the personal data of Mr. D. S. for the purpose of presenting him with an offer for liability insurance (...). The above was established based on the information provided by Mr. D. S. in his complaint and the evidence attached to this complaint. In connection with the above, it should be stated that the Entrepreneur processed the personal data of the Complainant either as an administrator or as a processor. The role in which the Entrepreneur acted and currently acts while processing the personal data of Mr. D. S. has no impact on the resolution of this case. The obligations referred to in Article 31 and Article 58(1)(e) of Regulation 2016/679, as well as the liability for their violation (implemented in this proceeding regarding the imposition of an administrative monetary penalty), are identical for both the administrator and the processor.

In the proceeding with reference number DS.523.5697.2020, in order to establish the factual state of the case initiated by Mr. D. S.'s complaint, the President of the UODO twice contacted the Entrepreneur with a request to respond to the content of the complaint and to provide explanations by

answering detailed questions regarding the matter. Both letters (see points 2 and 3 of the justification of this decision), addressed to the disclosed address of the permanent place of business of the Entrepreneur in the CEIDG, were received by Ms. A. J. – an adult household member of the Entrepreneur and/or his representative – therefore, in accordance with the provisions of Article 43 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735, as amended), hereinafter referred to as "k.p.a.", it should be considered that they were properly and effectively delivered to the Entrepreneur. The Entrepreneur did not provide any response to both requests directed to him, which is unequivocally and indisputably evident from the case files of DS.523.5697.2020. This state of affairs was not changed by the initiation of this proceeding regarding the imposition of an administrative monetary penalty (reference number DKE.561.23.2021). The two letters directed to the Entrepreneur within this proceeding – the letter from the President of the UODO dated September 2, 2021 (see point 7 of the justification of this decision) and the request dated April 8, 2022 (see point 8 of the justification of this decision) – were also received by Ms. A. J. – an adult household member of the Entrepreneur and/or his representative – and remained unanswered by the Entrepreneur. The above is confirmed by the entirety of the correspondence gathered in the files of this case.

In light of the above, considering that the Entrepreneur processed – as an administrator or processor – the personal data of the Complainant, and thus is undoubtedly in possession of the information necessary to consider Mr. D. S.'s complaint, it should be stated that he violated the obligation to ensure the President of the UODO access to the information necessary for the realization of his tasks – in this case, for the substantive resolution of the case with reference number DS.523.5697.2020. Such action by the Entrepreneur constitutes a violation of Article 58(1)(e) of Regulation 2016/679. This action also exhausts the elements of the violation of Article 31 of Regulation 2016/679. Cooperation with the supervisory authority in the performance of its tasks, which is the subject of the obligation specified in this provision, also includes (and even primarily) the obligation to present to the authority – at its request – all information held by the administrator or processor related to the proceedings conducted by him.

The consequence of the lack of access to the information that the President of the UODO requested from the Entrepreneur is an obstacle to the objective, thorough, and comprehensive consideration of the case, as well as the unjustified prolongation of the duration of the proceedings initiated by Mr. D. S.'s complaint, which in turn contradicts the fundamental principles governing administrative proceedings – defined in Article 12(1) of the k.p.a. as the principles of thoroughness and speed of proceedings.

In light of the above, the President of the UODO states that in this case there are grounds justifying the imposition of an administrative monetary penalty on the Entrepreneur – pursuant to Article 83(5)(e) in fine and Article 83(4)(a) of Regulation 2016/679 – in connection with the lack of cooperation with the supervisory authority in the performance of its tasks (Article 31) and in connection with the failure of the Company to provide access to information necessary for the President of the UODO to perform his tasks (Article 58(1)(e)), that is, to resolve the case with reference number DS.523.5697.2020.

At the same time, due to the finding of a violation by the Entrepreneur of two provisions of Regulation 2016/679 (Article 31 and Article 58(1)(e)), in accordance with the provisions of Article 83(3) of this legal act (see point 13 of the justification of this decision), the President of the UODO determined the amount of the imposed administrative monetary penalty not exceeding the amount of the penalty for the most serious of these violations.

In the presented factual state, the President of the UODO considered the violation consisting of the failure of the Entrepreneur to provide access to all information necessary for the realization of his tasks, i.e., the violation of Article 58(1)(e) of Regulation 2016/679, to be the most serious, which is subject to a penalty of a higher amount of the two provided for in Regulation 2016/679 – up to 20,000,000 EUR, and in the case of...

****Enterprises up to 4% of its total annual turnover from the previous financial year, depending on which amount is higher. The seriousness of this violation is evidenced by the fact that the lack of access to**

the information that the President of the Personal Data Protection Office (UODO) has requested and continues to request from the Entrepreneur not only hinders an objective, thorough, and comprehensive examination of the case but also results in excessive and unjustified prolongation of the proceedings, which contradicts the fundamental principles governing administrative proceedings – defined in Article 12(1) of the Administrative Procedure Code (k.p.a.) – of thoroughness and speed of proceedings.**

****Conditions and Principles for the Imposition of Administrative Fines****

****Pursuant to Article 83(2) of Regulation 2016/679, administrative fines are imposed depending on the circumstances of each individual case. In each case, a number of criteria listed in points a) to k) of the aforementioned provision are taken into account (see point 14 of the justification of this decision). In deciding to impose an administrative fine on the Entrepreneur in this case and determining its amount, the President of UODO considered – among them – the following circumstances that aggravate the assessment of the violation:****

1. **The nature, gravity, and duration of the violation (Article 83(2)(a) of Regulation 2016/679).**

The violation subject to administrative fines in this case undermines the system aimed at protecting one of the fundamental rights of individuals, which is the right to the protection of personal data, or more broadly – to the protection of privacy. An essential element of this system, the framework of which is defined by Regulation 2016/679, is the supervisory authorities, which have been assigned tasks related to the protection and enforcement of individuals' rights in this regard. In order to enable the realization of these tasks, supervisory authorities have been equipped with a number of control powers, powers enabling the conduct of administrative proceedings, and remedial powers. On the other hand, administrators and data processors have been imposed, correlated with the powers of supervisory authorities, specific obligations, including the obligation to cooperate with supervisory authorities and the obligation to provide these authorities with access to information necessary for the realization of their tasks. The conduct of the Entrepreneur in this case, consisting of completely ignoring the correspondence directed to him by the President of UODO, resulting in hindering and unjustifiably prolonging the proceedings conducted by the President of UODO, should therefore be regarded as undermining the system of personal data protection, and for this reason, it is of significant weight and reprehensible character. The seriousness of the violation is further increased by the fact that the violation committed by the Entrepreneur was not an incidental event. The actions of the Entrepreneur were continuous and prolonged. They have lasted since the expiration of the 7-day deadline set for providing explanations in the first request directed by the President of UODO to the Entrepreneur in the proceedings with reference number DS.523.5697.2020, i.e., from March 9, 2021, until the date of this decision.

2. **The intentional nature of the violation (Article 83(2)(b) of Regulation 2016/679).**

In the opinion of the President of UODO, there was a lack of willingness to cooperate on the part of the Entrepreneur in providing the authority with all the information necessary to resolve the case, in which the President of UODO requested such information from him. According to the presumption arising from Article 43 of the Administrative Procedure Code, as well as according to the principles of life experience, indicating that the delivery of a letter to the hands of the addressee's representative or an adult household member undertaking to deliver this letter to the addressee is equivalent to delivering it to the addressee, it should be assumed that the subsequent requests of the President of UODO for the provision of information necessary in the proceedings with reference number DS.523.5697.2020, and further information about the ongoing proceedings regarding the imposition of an administrative fine on him, must have reached the awareness of the Entrepreneur. Therefore, the Entrepreneur must have known which authority was directing requests to him, what information this authority was requesting from him, and – in connection with the instructions provided to the Entrepreneur in the letters directed to him – what consequences are associated with non-compliance with the requests of the President of UODO. The above leads to the conclusion that the Entrepreneur made a conscious decision not to provide the information requested by the President of UODO.

3. **The degree of cooperation with the supervisory authority in order to remedy the violation and

mitigate its potential negative effects (Article 83(2)(f) of Regulation 2016/679).**

During the proceedings regarding the imposition of an administrative fine on the Entrepreneur (reference number DKE.561.23.2021), the Entrepreneur did not undertake any cooperation with the President of UODO. In particular, the Entrepreneur did not provide any information requested by the President of UODO in the proceedings with reference number DS.523.5697.2020, which could have been treated as an action aimed at remedying the violation identified in this case or mitigating its effects. Such a complete lack of cooperation with the President of UODO continues to hinder the President of UODO's ability to quickly and thoroughly examine the complaint of Mr. D.S.

in the proceedings with reference number DS.523.5697.2020.

In the opinion of the President of the UODO, none of the circumstances referred to in Article 83(2) of Regulation 2016/679 justify mitigating the established – taking into account the aforementioned aggravating circumstances – dimension of the penalty imposed by this decision.

Due to the specific nature of the violation (pertaining to the relationship between the administrator and the supervisory authority, rather than the relationship between the administrator and the data subjects), the following circumstances could not be taken into account by the President of the UODO in this case:

1. the number of affected individuals and the extent of the damage suffered by them (Article 83(2)(a) of Regulation 2016/679) – due to the fact that the violation is not associated with the breach of personal data of any individual and consequently, no damages have occurred on the part of natural persons;
2. actions taken by the administrator or the processor to minimize the damage suffered by the data subjects (Article 83(2)(c) of Regulation 2016/679) – due to the fact that no damages have occurred on the part of natural persons, there is no obligation or possibility for the Entrepreneur to take any actions aimed at minimizing them;
3. the degree of responsibility of the administrator or the processor, taking into account the technical and organizational measures implemented by them under Articles 25 and 32 of Regulation 2016/679 (Article 83(2)(d) of Regulation 2016/679) – due to the fact that the violation in its essence is not related to the technical and organizational measures implemented by the Entrepreneur to ensure the protection of personal data and the security of their processing;
4. categories of personal data affected by the violation (Article 83(2)(g) of Regulation 2016/679) – due to the fact that the violation is not associated with the breach of any personal data.

The remaining circumstances indicated below, referred to in Article 83(2) of Regulation 2016/679, after assessing their impact on the violation established in this case, were deemed neutral by the President of the UODO, meaning they have neither an aggravating nor a mitigating effect on the dimension of the imposed administrative monetary penalty:

1. any relevant prior violations by the administrator or the processor (Article 83(2)(e) of Regulation 2016/679);

The President of the UODO did not find any prior violations of data protection regulations committed by the Entrepreneur, which is why there are no grounds to consider this circumstance as aggravating. And since such a state (compliance with data protection regulations) is a natural state resulting from the legal obligations imposed on the Entrepreneur, it cannot also have a mitigating effect on the assessment of the violation made by the President of the UODO.

2. the manner in which the supervisory authority became aware of the violation (Article 83(2)(h) of Regulation 2016/679);

The information about the violation established in this case was obtained by the President of the UODO ex officio by analyzing the course of the ongoing proceedings before him with reference number DS.523.5697.2020. This is a natural way of obtaining information about such a violation (that is, about the lack of cooperation with the authority and the failure to provide access to information necessary for the performance of its tasks) resulting from the competence of the President of the UODO to assess the course of this proceeding and to determine what information is necessary for him to resolve the case being conducted. Therefore, there are no grounds for a negative assessment of the fact that the information about the violation did not come from the Entrepreneur; however, this fact cannot also be taken into account to the benefit of the Entrepreneur since he did not participate in obtaining the information about the violation by the President of the UODO.

3. compliance with previously applied measures in the same case, referred to in Article 58(2) of Regulation 2016/679 (Article 83(2)(i) of Regulation 2016/679);

Before issuing this decision, the President of the UODO did not apply any measures mentioned in Article 58(2) of Regulation 2016/679 against the Entrepreneur in the examined case, which is why the Entrepreneur had no obligation to take any actions related to their application, and such actions, assessed by the President of the UODO, could have had an aggravating or mitigating effect on the assessment of the established violation.

4. the application of approved codes of conduct or approved certification mechanisms (Article 83(2)(j) of Regulation 2016/679);

The Entrepreneur does not apply the instruments referred to in Articles 40 and 42 of Regulation 2016/679. However, their adoption, implementation, and application are not – as stipulated by the provisions of Regulation 2016/679 – mandatory for administrators and processors, which is why the circumstance of their non-application cannot be considered in this case.

read against the Entrepreneur. On the other hand, the circumstance of adopting and applying such instruments as means guaranteeing a higher than standard level of protection for processed personal data could be taken into account in favor of the Entrepreneur.

achieved directly or indirectly in connection with the violation of financial benefits or avoided losses (Article 83(2)(k) of Regulation 2016/679)

The President of the UODO did not find that the Entrepreneur, due to a lack of cooperation with the authority and failure to provide the information requested by that authority, obtained any financial benefits or avoided such losses. Therefore, there are no grounds for treating this circumstance as burdensome for the Entrepreneur. The determination of the existence of measurable financial benefits resulting from the violation of the provisions of Regulation 2016/679 should be assessed decidedly negatively. On the other hand, the failure of the Entrepreneur to achieve such benefits, as a natural state independent of the will and actions of the Entrepreneur, is a circumstance that, by its very nature, cannot be mitigating for the Entrepreneur. This is confirmed by the very wording of Article 83(2)(k) of Regulation 2016/679, which requires the supervisory authority to pay due attention to the benefits "achieved" – that is, those that occurred on the part of the entity committing the violation.

other aggravating or mitigating factors (Article 83(2)(k) of Regulation 2016/679).

The President of the UODO, comprehensively considering the case, did not note any circumstances other than those described above that could influence the assessment of the violation and the amount of the imposed administrative monetary penalty.

According to the wording of Article 83(1) of Regulation 2016/679 (see point 13 of the justification of this decision), the administrative monetary penalty imposed by the supervisory authority should be effective, proportionate, and deterrent in each individual case. In the opinion of the President of the UODO, the penalty imposed on the Entrepreneur in this proceeding corresponds to these principles. Its severity in financial terms will discipline the Entrepreneur to cooperate properly with the President of the UODO, both in the further course of the proceedings under reference DS.523.5697.2020 and in any other proceedings conducted in the future with his participation before the President of the UODO. In terms of disciplining the Entrepreneur, the penalty will therefore be effective. The penalty imposed by this decision is also, in the opinion of the President of the UODO, proportionate to the seriousness of the established violation and to the possibility of its bearing by the Entrepreneur without excessive detriment to his private material status as well as to the business activity he conducts. In deciding on the amount of the penalty, the President of the UODO took into account, on the one hand, the reprehensibility of the Entrepreneur's conduct and the seriousness of the violation committed by him, and on the other hand, the small scale of the sole proprietorship conducted by him. The assessment of the scale and scope of the Entrepreneur's activity, in light of the fact that he did not present financial data for the year 2021, was made by the President of the UODO in an estimated manner (see point 16 of the justification of this decision). Furthermore, in the opinion of the President of the UODO, the penalty imposed on the Entrepreneur in this specific amount, as specified in the operative part of this decision, will also serve a deterrent function; it will be a clear signal to the Entrepreneur, who is obliged

under the provisions of Regulation 2016/679 to cooperate with the President of the UODO, that neglecting the obligations related to ensuring access to personal data and information necessary for the President of the UODO to perform his tasks constitutes a serious violation and, as such, will be subject to financial sanctions.

At this point, it should be noted that the imposition of an administrative monetary penalty on the Entrepreneur is – given his previous conduct as a party in the case under reference DS.523.5697.2020 – necessary; it is the only measure available to the President of the UODO that will enable access to the information necessary in the ongoing proceedings.

Considering the provisions of Article 103 of the Personal Data Protection Act (see point 17 of the justification of this decision), the President of the UODO imposed on the Entrepreneur – using the average euro exchange rate from January 28, 2022 (where 1 EUR = 4.5697 PLN) – an administrative monetary penalty in the amount of 4,569 PLN (which is equivalent to 1,000 EUR).

In this factual and legal state, the President of the UODO ruled as stated in the operative part.

Instruction

The decision is final. According to Article 53 § 1 of the Act of August 30, 2002, on Proceedings Before Administrative Courts (Journal of Laws of 2022, item 329, as amended) (hereinafter "p.p.s.a."), the party has the right to file a complaint to the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery, through the President of the Personal Data Protection Office (address: ul. Stawki 2, 00 - 193 Warsaw). A court fee must be paid for the complaint, in accordance with Article 231 in connection with Article 233 of the p.p.s.a. According to Article 74 of the Act of May 10, 2018, on Personal Data Protection (Journal of Laws of 2019, item 1781) (hereinafter "u.o.d.o."), filing a complaint by the party to the administrative court suspends the execution of the decision regarding the administrative monetary penalty. In proceedings before the Provincial Administrative Court, the party has the right to apply for legal aid, which includes exemption from court fees. and the appointment of a lawyer, legal advisor, tax advisor, or patent attorney. The right to assistance may be granted upon the request of a Party submitted before the initiation of proceedings or during the course of proceedings. The application is exempt from court fees.

According to Article 105, paragraph 1 of the Act on the Protection of Personal Data (u.o.d.o.), the administrative fine must be paid within 14 days from the date of expiration of the deadline for filing a complaint to the Provincial Administrative Court, or from the date of the finalization of the ruling of the administrative court, to the bank account of the Personal Data Protection Office at NBP O/O Warsaw no. 28 1010 1010 0028 8622 3100 0000.

Furthermore, according to Article 105, paragraph 2 of the u.o.d.o., the President of the Personal Data Protection Office may, upon a justified request from the penalized entity, postpone the deadline for the payment of the administrative fine or allow it to be paid in installments. In the case of postponement of the deadline for the payment of the administrative fine or its division into installments, the President of the Personal Data Protection Office shall accrue interest on the unpaid amount at an annual rate, applying a reduced late payment interest rate, announced based on Article 56d of the Act of August 29, 1997 - Tax Ordinance (Journal of Laws of 2021, item 1540, as amended), from the day following the day of submission of the request.

Print article

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